

Amicus Curiae Outline: Judicial Review Cannot Be Defeated by Secrecy

Citizens for Constitutional Fidelity

February 27, 2026

Introduction and Reading Order

This document collects the core components of the amicus theory into a single, court-usable package. The components are ordered for how a Justice or clerk is most likely to read and reuse them. First comes the Question Presented, because it frames the case and controls everything that follows. Next come the Summary and the Interest of Amicus, because they explain why the Court should care and why this filing helps. The Proposed Holding then supplies opinion-ready language that can be lifted into a draft. The Limiting Principle and Standard of Application follow immediately, because they make the rule administrable and safe to adopt. Finally, an Argument Outline shows where the doctrine sits in a conventional brief structure and how the pieces connect.

Question Presented

Whether the Constitution permits the Executive Branch to invoke executive privilege or the state-secrets doctrine to withhold materials where such secrecy prevents the Judiciary from conducting meaningful judicial review of substantial constitutional claims alleging that executive power itself may have been exercised in violation of constitutional limitations, including claims that undisclosed foreign influence or corruption may have affected governmental decisionmaking.

Summary of Argument

This case does not concern ordinary disputes over classification or national-security confidentiality. It presents a prior constitutional question: whether executive secrecy may be used to prevent judicial review of allegations that executive decisionmaking itself may be compromised by undisclosed foreign influence or corruption. Judicial review is the Constitution's principal safeguard

against unlawful exercises of governmental power. That safeguard becomes illusory if the Executive may withhold evidence necessary for courts to determine whether constitutional violations have occurred. Executive privilege and the state-secrets doctrine exist to protect the Nation, not to shield unconstitutional conduct from judicial scrutiny. As this Court held in *United States v. Nixon*, generalized assertions of confidentiality must yield when they obstruct the administration of constitutional justice. Where secrecy prevents courts from determining whether executive authority is being exercised in fidelity to the Constitution, the assertion of privilege exceeds constitutional limits. The Judiciary must retain the capacity to verify that the constitutional structure itself remains intact. Amicus therefore urges the Court to hold that executive secrecy cannot defeat judicial review where the withheld materials are necessary to determine whether executive power is being exercised consistently with constitutional governance.

Interest of Amicus Curiae

Citizens for Constitutional Fidelity is a civic organization devoted to the preservation of constitutional governance and the structural safeguards designed to prevent corruption, foreign influence, and abuse of public trust within the federal government. Amicus submits this brief to address a question of exceptional constitutional importance: whether the Executive Branch may invoke secrecy in a manner that prevents the Judiciary from determining whether executive power itself is being exercised constitutionally. *Rule 37 disclosures are to be included here in final form.*

Proposed Holding

The Constitution does not permit the Executive Branch to invoke secrecy in a manner that prevents the Judiciary from performing its duty of judicial review. Where executive privilege or the state-secrets doctrine is asserted to withhold materials necessary for a court to determine whether executive power itself has been exercised consistently with the Constitution, the privilege must yield to procedures sufficient to preserve meaningful judicial adjudication. Judicial review, established in *Marbury v. Madison*, requires that federal courts possess the practical ability to determine the legality of governmental action. That function would be rendered illusory if the Executive could unilaterally foreclose judicial examination of evidence bearing directly on constitutional compliance. Executive confidentiality serves important national interests, particularly in matters of diplomacy and national security. But such confidentiality exists within the constitutional structure and cannot operate to place executive action beyond constitutional scrutiny. As this Court recognized in *United States v. Nixon*, generalized assertions of privilege must yield where necessary to preserve the administration of constitutional justice. Accordingly, when a litigant presents a substantial, non-frivolous claim that withheld materials are necessary to determine whether executive conduct violates constitutional limitations, including allegations that governmental action may be affected

by undisclosed foreign influence or corruption, the Judiciary must retain authority to verify the legitimacy of the privilege claim through independent judicial processes. The Constitution requires not public disclosure in every instance, but meaningful judicial verification. Courts therefore must employ procedures adequate to ensure that executive secrecy does not defeat constitutional adjudication. Such procedures may include in camera review, appointment of a security-cleared special master, segregability analysis, or other mechanisms consistent with the protection of legitimate national-security interests. The governing principle is straightforward: executive privilege protects the Nation, not the Executive from constitutional review. A privilege asserted in a manner that disables the Judiciary from determining constitutionality exceeds constitutional bounds. The judgment below is therefore vacated, and the case remanded for proceedings consistent with this opinion.

Limiting Principle

The rule announced today is a narrow one. Executive privilege and the state-secrets doctrine remain vital components of the constitutional structure, and courts must continue to afford substantial respect to executive assessments concerning national security and foreign affairs. Judicial verification is not warranted merely because litigants dispute executive judgments or seek disclosure of sensitive information. Rather, heightened judicial review is required only where a court determines that (1) a substantial and non-speculative constitutional claim has been presented, and (2) the withheld materials are plausibly necessary to resolve whether the exercise of executive power itself complies with constitutional limitations. Routine policy disagreements, generalized allegations of misconduct, or speculative assertions of impropriety do not suffice to overcome the ordinary presumption of executive confidentiality.

Nor does this rule require public disclosure of classified information or judicial second-guessing of operational national-security decisions. The Constitution demands only that courts retain the practical capacity to adjudicate constitutional claims through procedures that preserve both security and accountability. Where meaningful judicial review can be accomplished through in camera inspection, use of cleared officers of the court, summaries, substitutions, or other protective mechanisms, those measures remain preferred. Public disclosure becomes relevant only if no constitutionally adequate alternative permits adjudication to proceed. In this manner, the Judiciary preserves its duty to say what the law is while respecting the Executive's constitutionally assigned responsibilities in safeguarding the Nation.

Standard of Application

To ensure that executive secrecy does not defeat the constitutional function of judicial review while preserving the Executive's authority in matters of national security, courts confronted with asser-

tions of executive privilege or the state-secrets doctrine in cases presenting structural constitutional claims should apply the following framework.

(1) Threshold Constitutional Showing

The court must first determine whether the party seeking review has presented a substantial, non-frivolous constitutional claim. The claim must allege a violation of identifiable constitutional limitations on governmental power rather than a generalized grievance, policy disagreement, or speculative concern. Allegations supported by specific factual predicates, sworn submissions, or corroborating circumstances may satisfy this requirement.

(2) Materiality and Necessity

The court must next assess whether the withheld materials are plausibly material to resolving the constitutional question presented. Judicial verification is warranted only where the evidence sought bears directly on the legality of the challenged governmental action and where adjudication cannot proceed meaningfully without some form of access to the information.

(3) Adequacy of Protective Alternatives

Before ordering broader disclosure, the court must consider whether constitutional adjudication can proceed through less intrusive means consistent with national-security protection. Such measures may include in camera judicial inspection, appointment of a security-cleared special master, controlled evidentiary summaries, substitutions, or other procedures sufficient to permit adversarial testing without unnecessary exposure of sensitive information.

(4) Preservation of Meaningful Judicial Review

If the court determines that available protective alternatives are insufficient to permit meaningful adjudication, it must fashion relief adequate to preserve the judicial power. The decisive inquiry is whether the privilege, as asserted, would otherwise prevent the court from determining the constitutionality of executive conduct. Where secrecy would render judicial review merely formal or illusory, additional disclosure measures may be required to the extent necessary to restore genuine adjudication.

(5) Narrow Tailoring and Continuing Supervision

Any disclosure ordered under this framework must be narrowly tailored to the constitutional necessity identified and remain subject to continuing judicial supervision. Courts shall minimize

exposure of sensitive information while ensuring that executive privilege is not applied in a manner that places governmental action beyond constitutional scrutiny.

Argument Outline

This section is a structural outline of how the brief can present the doctrine in conventional form. It is not a full draft, but it shows how the components above map onto standard Supreme Court headings.

I. Judicial Review Cannot Be Defeated by Executive Secrecy

- Judicial review requires the practical capacity to adjudicate constitutionality.
- A privilege claim that forecloses adjudication exceeds constitutional bounds.
- The Court should reaffirm that the Judiciary retains ultimate authority to determine the privilege's scope.

II. Executive Privilege and State Secrets Are Qualified Doctrines Within the Constitutional Order

- Confidentiality serves national interests but does not place the Executive above the law.
- *United States v. Nixon* supplies the principle that generalized privilege yields to constitutional necessity.
- The same principle governs where secrecy would render judicial review illusory.

III. The Constitution Treats Undisclosed Foreign Influence as a Core Structural Threat

- Foreign influence concerns are constitutionally salient and structurally relevant.
- When allegations are substantial and non-speculative, courts must retain capacity to test them.
- The inquiry is institutional and adjudicative, not political or rhetorical.

IV. The Proper Remedy Is Judicially Managed Verification, Narrowly Tailored to Constitutional Need

- Apply the Standard of Application to determine when heightened verification is required.

- Prefer in camera review, cleared special masters, summaries, and substitutions where adequate.
- Order only what is necessary to restore meaningful judicial review.

Conclusion

The Court should hold that executive secrecy cannot be invoked to defeat judicial review of substantial constitutional claims concerning the legality of executive action. The Court should remand for proceedings that preserve meaningful adjudication through appropriately protective procedures.

Respectfully submitted,

Counsel for Amicus Curiae

Prepared by Citizens for Constitutional Fidelity.

Primary drafting coordination by Rolf Carlson.